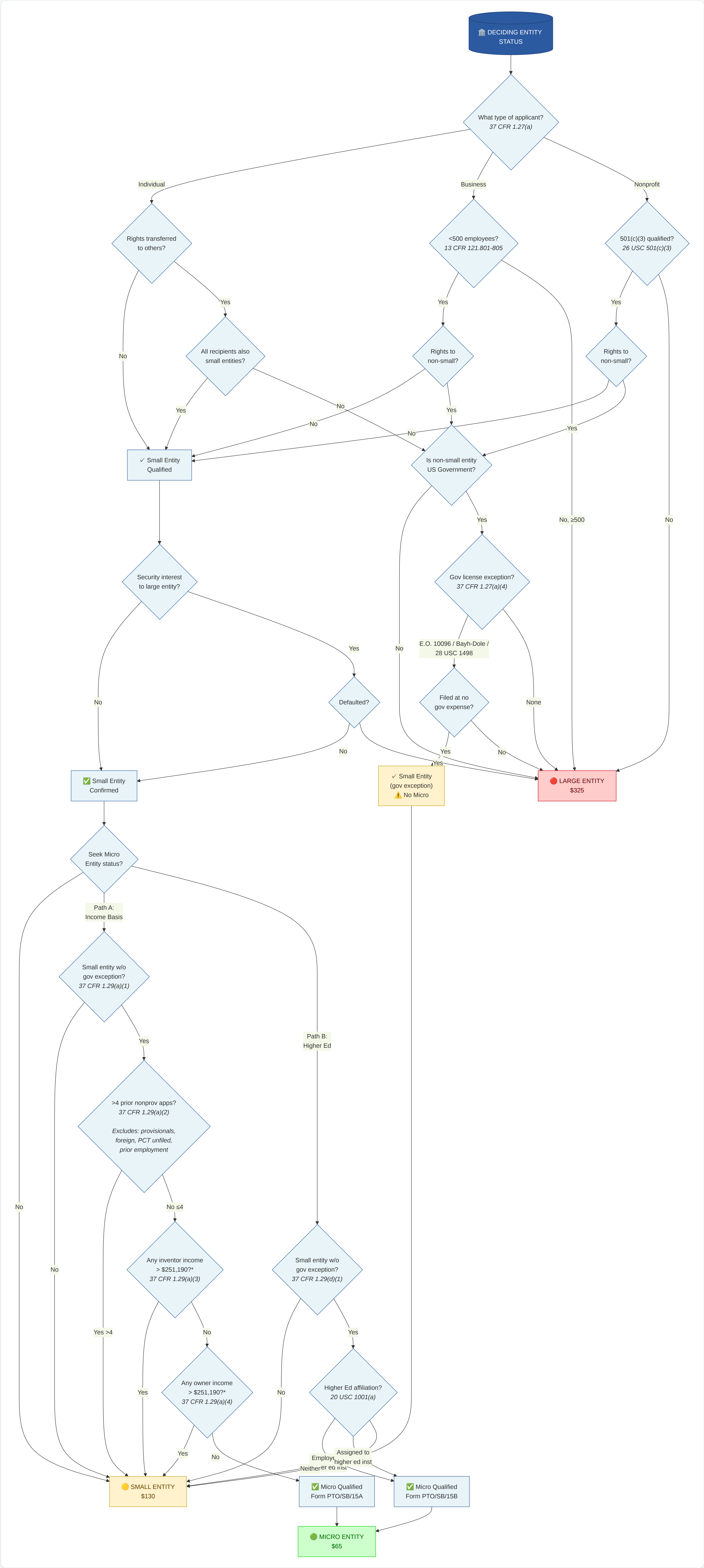


USPTO Entity Status Decision Tree

Complete determination flow based on 37 CFR 1.16(d), 1.27, 1.29 and related USC sections

Large Entity (\$325) Small Entity (\$130) Micro Entity (\$65)



Micro Entity

\$65

80% discount
37 CFR 1.16(d) / 1.29

Small Entity

\$130

60% discount
37 CFR 1.16(d) / 1.27

Large Entity

\$325

No discount
37 CFR 1.16(d)

Key References & Notes

- * Income Limit: \$251,190 for fees paid in 2025 (3× median household income per 37 CFR 1.29(a)(3))
- Government License Exceptions: E.O. 10096 (federal employee inventions), 35 USC 202(c)(4) (Bayh-Dole), 28 USC 1498 (compulsory licenses)
- Security Interest: Granting collateral to large entity doesn't disqualify until default
- 4-App Limit Exclusions: Provisionals, foreign apps, PCT apps where national fee unpaid, apps assigned due to prior employment
- Micro Entity Forms: PTO/SB/15A (income basis), PTO/SB/15B (higher ed basis) - must file before paying fees
- Re-determination Required: Before continuation/divisional/CIP, reissue, issue fee, or maintenance fees